

		A financial elder abuse claim lies when a person or entity “[t]akes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both,” or assists in such conduct. (<i>Munoz v. Patel</i> (2022) 81 Cal.App.5th 761, 782 [citing Welf. & Inst. Code, § 15610.30, subd. (a)(1), (2).]) Plaintiff alleges Powell was an elder at the time she formed the trust. (Compl. ¶ 10.) Plaintiff further alleges the decedent obtained the trust property by orally representing to Powell that he needed money to pay for chemotherapy and targeted radiation, but instead spending it on various luxuries and indulgences for himself and his son. (Compl. ¶¶ 14, 42.) These allegations are sufficient at the pleading stage. The Court OVERRULES Defendant’s demurrer as to the fifth cause of action.
6	25-01471349 <i>Duarte vs. Siegel-Foigelman</i>	Motion to Be Relieved as Counsel of Record
7	24-01403120 <i>Homman Holding, Inc. vs. Epps</i>	Motion to Disqualify Attorney of Record Plaintiff Homman Holding, Inc.’s Motion to Disqualify Defendants’ Counsel of Record is DENIED. Plaintiff moves to disqualify Kutak Rock, LLP as counsel for Defendants in this action. <u>Legal Standard</u> “A court may disqualify an attorney upon “a showing that disqualification is required under professional standards governing avoidance of conflicts of interest or potential adverse use of confidential information.”” (<i>Havasu Lakeshore Investments, LLC v. Fleming</i> (2013) 217 Cal.App.4th 770, 777.) This authority “derives from the power inherent in every court ‘[t]o control in furtherance of justice, the conduct of its ministerial officers.’” (<i>People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.</i> (1999) 20 Cal.4th 1135, 1145, quoting Code Civ. Proc., § 128, subd. (a)(5); see <i>City and County of San Francisco v. Cobra Solutions, Inc.</i> (2006) 38 Cal.4th 839, 846; <i>Beachcomber Management Crystal Cove, LLC v. Superior Court</i> (2017) 13 Cal.App.5th 1105, 1116.) “Disqualification motions implicate several important interests, among them are the clients’ right to counsel of their choice, the attorney’s interest in representing a client, the financial burden of replacing a disqualified attorney, and tactical abuse that may underlie the motion.” (<i>Roush v. Seagate Technology, LLC</i> (2007) 150 Cal.App.4th 210, 218-219.) “Although disqualification necessarily impinges on a litigant’s right to counsel of his or her choice, the decision on a disqualification motion ‘involves more than just the interests of the parties.’ [Citation.] When ruling on a disqualification motion, ‘[t]he paramount concern must be to